

This is a private record.

Name

118 Maple Street
Address

Springfield, UT 01234
City, State, Zip

555-0142
Phone

Check your email. You will receive information and documents at this email address.

Email

I am ☐ Plaintiff/Petitioner ☐ Plaintiff/Petitioner's Attorney (Utah Bar #: _____)

In the ☐ District ☐ Justice Court of Utah

_____ Judicial District _____ County

Court Address _____

In Re:

Petitioner

**Petition to Expunge Records
Cannabis Conviction**
Utah Code 77-40a-305((4))

Case Number

Judge

1. **Conviction record**

I was convicted of cannabis possession in court case number

_____.

2. **Certificate of eligibility**

I am not required to receive a certificate of eligibility for expungement to proceed with this petition. Utah Code 77-40a-305(4).

3. **Qualifying condition** (Utah Code 26B-4-203)

At the time of my arrest or citation leading to the conviction, I had the following qualifying condition which would have allowed me to use medical cannabis to treat symptoms (Choose all that apply):

☐ HIV or acquired immune deficiency syndrome

☐ Alzheimer's disease

- [] amyotrophic lateral sclerosis
- [] cancer
- [] cachexia
- [] persistent nausea not significantly responsive to traditional treatment, but not nausea related to:
 - pregnancy;
 - cannabis-induced cyclical vomiting syndrome; or
 - cannabinoid hyperemesis syndrome
- [] Crohn's disease or ulcerative colitis
- [] epilepsy or debilitating seizures
- [] multiple sclerosis or persistent and debilitating muscle spasms
- [] post-traumatic stress disorder (meeting the requirements described in Utah Code 26B-4-203(2)(j))
- [] autism
- [] a terminal illness when the patient's remaining life expectancy is less than six months
- [] a condition resulting in the individual receiving hospice care
- [] a rare condition or disease that:
 - affects less than 200,000 individuals in the United States, as defined in Section 526 of the Federal Food, Drug, and Cosmetic Act; and
 - is not adequately managed despite treatment attempts using:
 - conventional medications other than opioids or opiates; or
 - physical interventions;
- [] pain lasting longer than two weeks that is not adequately managed, in the qualified medical provider's opinion, despite treatment attempts using:
 - conventional medications other than opioids or opiates; or
 - physical interventions
- [] a condition approved by the Compassionate Use Board. I have attached proof of the Board's approval.

4. **Form of cannabis** (Utah Code 26B-4-201(32))

At the time of my arrest or citation leading to the conviction, the cannabis in my possession was in the following form to medicinally treat my condition (Choose all that apply).

☐ **Processed medical cannabis or a medical cannabis product:**

- ☐ a tablet
- ☐ a capsule
- ☐ a concentrated liquid or viscous oil
- ☐ a liquid suspension
- ☐ a topical preparation
- ☐ a transdermal preparation
- ☐ a sublingual preparation
- ☐ a gelatinous cube, gelatinous rectangular cuboid, or lozenge in a cube or rectangular cuboid shape
- ☐ a resin or wax

☐ **Unprocessed cannabis flower** in a container described in Utah Code 4-41a-602 that:

- contains cannabis flowers in a quantity that varies by no more than 10% from the stated weight at the time of packaging;
- at any time the medical cannabis cardholder transports or possesses the container in public, is contained within an opaque, child-resistant bag that the medical cannabis pharmacy provides; and
- is labeled with the container's content and weight, the date of purchase, the legal use termination date.

☐ **A form measured in grams, milligrams, or milliliters.**

5. **Amount of cannabis** (Utah Code 26B-4-201(16))

At the time of my arrest or citation leading to the conviction, the cannabis in my possession was in an amount to medicinally treat my condition and did not exceed (Choose all that apply):

- ☐ 113 grams by weight (unprocessed cannabis in a medicinal dosage form)
- ☐ 20 grams of total composite tetrahydrocannabinol (cannabis product in a medicinal dosage form)

6. **Public interest**

Expunging the crime(s) will not harm the public's interests because:

7. **Request**

I ask the court to order expungement of the record identified above, and order state, county and local government agencies to expunge related records in their possession or control.

I declare under criminal penalty under the law of Utah that everything stated in this document is true.

Signed at _____ (city, and state or country).

Date

Signature ► _____

Printed Name Jordan Avery Reyes

Jordan Avery Reyes
Name

Address

City, State, Zip

Phone

Email

Check your email. You will receive information and documents at this email address.

In the [] District [] Justice Court of Utah

_____ Judicial District _____ County

Court Address _____

In Re:

Petitioner

**Order on Petition to Expunge
Records
(Cannabis Conviction)**

24-CR-001234
Case Number

Judge

The matter before the court is a Petition to Expunge Records. This matter is being resolved by:

- [] The pleadings and other papers of the parties, or
- [] A hearing held on _____ (date), notice of which was served on all parties and at which the court considered the pleadings and evidence presented by the parties.

Having considered the documents filed with the court, the evidence, and the arguments, and now being fully informed,

The court finds by clear and convincing evidence:

Utah Code 77-40a-306(1)(d)

1. The petition is sufficient.

2. The statutory requirements have been met.
3. At the time of petitioner's arrest or citation leading to the conviction, they had a qualifying condition which would have allowed them to use medical cannabis to treat symptoms. (Utah Code 26B-4-203).
4. At the time of petitioner's arrest or citation leading to the conviction, the cannabis in their possession was in a form and amount to medicinally treat their condition. (Utah Code 26B-4-201(16) and (32)).
5. Expunging the petitioner's records will not harm the public interest.

The court concludes:

6. The records of petitioner's arrest, investigation, detention, and conviction relating to court case number noted above should be expunged.

The court orders:

- The records of petitioner's arrest, investigation, detention, and conviction relating to court case number noted above will be expunged. Petitioner may deliver a copy of this order to any government agency or official that may have such records.
- The Bureau of Criminal Identification must notify all criminal justice agencies affected by this order.
- The clerk of the court must expunge all related court records as provided by Rule 4-205.
- Any other government agency or official receiving this order must expunge related records as provided by Utah Code, Title 77, Chapter 40a, Part 4.
- Any government agency or official receiving this order may not divulge information identifying the petitioner.
- Any government agency or official receiving this order must respond to any inquiry as though the arrest or conviction did not occur.

Judge's signature may instead appear at the top of the first page of this document.

	Signature ►	
Date	Judge	

Certificate of Service

I certify that I filed with the court and am serving a copy of this Order on Petition to Expunge Records – Cannabis Conviction on the following people.

Person's Name	Service Method	Service Address	Service Date
(Prosecuting agency)	☐ Mail ☐ Hand Delivery ☐ E-filed/MyCase ☐ Email ☐ Left at business (With person in charge or in receptacle for deliveries.) ☐ Left at home (With person of suitable age and discretion residing there.)		

Date

Signature ► _____

Printed Name Jordan Avery Reyes

Utah District Court Cover Sheet for Civil Actions (Not for Probate and Domestic Relations Cases)

Interpretation. If you do not speak or understand English, the court will provide an interpreter. Contact court staff immediately to ask for an interpreter.

Plaintiff/Petitioner (First)

Name _____
Address _____
City, State, Zip _____
Phone _____ Email _____

First Plaintiff/Petitioner's Attorney or Licensed Paralegal Practitioner*

Name _____
Bar Number _____

Plaintiff/Petitioner (Second)

Jordan Avery Reyes
Name _____
118 Maple Street
Address _____
Springfield, UT 01234
City, State, Zip _____
Phone _____ Email _____

Second Plaintiff/Petitioner's Attorney or Licensed Paralegal Practitioner*

Name _____
Bar Number _____

Interpretación. Si usted no habla ni entiende el Inglés el tribunal le proveerá un intérprete. Contacte a un empleado del tribunal inmediatamente para pedir un intérprete.

Defendant/Respondent (First)

Name _____
Address _____
City, State, Zip _____
Phone _____ Email _____

First Defendant/Respondent's Attorney or Licensed Paralegal Practitioner*

Name _____
Bar Number _____

Defendant/Respondent (Second)

Name _____
Address _____
City, State, Zip _____
555-0142
Phone _____

Second Defendant/Respondent's Attorney or Licensed Paralegal Practitioner*

Name _____
Bar Number _____

*Attorney or LPP addresses provided by Utah State Bar.

Total Claim for Damages \$ _____ **Jury Demand** [] Yes [] No \$250 [] Jury Demand

Schedule of Fees: §78A-2-301 (Choose all that apply. See Page 2 for fees for claims other than claims for damages.)

CHOOSE ONE:

- [] No monetary damages are requested (URCP 26: Tier 2)
[] Damages requested are \$50,000 or less (URCP 26: Tier 1)
[] Damages requested are more than \$50,000 and less than \$300,000 (URCP 26: Tier 2)
[] Damages requested are \$300,000 or more (URCP 26: Tier 3)
[] Domestic relations (URCP 26: Tier 4)
[] Damages are unspecified.
Circle one: Tier 1 Tier 2 Tier 3
[] This case is exempt from URCP 26. (E)

— MOTION TO RENEW JUDGMENT —

\$ 52.50 [] Damages \$2000 or less

\$ 107.50 [] Damages \$2001 - \$9,999

\$187.50 [] Damages \$10,000 & over

— COMPLAINT OR INTERPLEADER —

\$105 [] Damages \$2000 or less

\$215 [] Damages \$2001 - \$9999

\$375 [] Damages \$10,000 & over

\$375 [] Damages Unspecified

— COUNTERCLAIM, CROSS CLAIM, THIRD PARTY CLAIM, OR INTERVENTION —

\$55 [] Damages \$2000 or less

\$165 [] Damages \$2001 - \$9999

\$170 [] Damages \$10,000 & over

\$170 [] Damages Unspecified

Choose One

Fee Case Type — — — — — APPEALS — — — — —

- \$375 [] Administrative Agency Review
 Sch [] Tax Court (Appeal of Tax Commission Decision)
 Court: Refer to Clerk of Court upon filing.
 \$240 [] Civil (78A-2-301(1)(h)) (E)
 \$240 [] Small Claims Trial De Novo (E)
 \$80 [] Municipal Admin. Determination. (E)

- — — — — GENERAL CIVIL — — — — —
- Sch [] Civil Rights
 \$0 [] Civil Stalking (E)
 \$375 [] Condemnation/Eminent Domain
 Sch [] Contracts
 Sch [] Contract: Employment Discrimination
 Sch [] Contract: Fraud
 Sch [] Debt Collection
 \$375 [] Essential Treatment Intervention (26B-5-503)
 Sch [] Eviction/Forcible Entry and Detainer (E)
 \$375 [] Extraordinary Relief (URCP 65B)
 \$375 [] Forfeiture of Property (E)
 Sch [] Interpleader
 Sch [] Lien/Mortgage Foreclosure
 Sch [] Miscellaneous Civil
 \$375 [] Post Conviction Relief: Capital (E)
 \$375 [] Post Conviction Relief: Non-capital (E)
 Sch [] Property Rights
 \$375 [] Registry Removal (Gun/White Collar)
 Sch [] Sexual Harassment
 Sch [] Water Rights
 \$375 [] Wrongful Lien
 Sch [] Wrongful Termination

- — — — — TORTS — — — — —
- Sch [] Automobile Tort
 Sch [] Intentional Tort
 Sch [] Malpractice-Medical Tort
 Sch [] Malpractice-Legal Tort; Other
 Sch [] Premises Liability
 Sch [] Asbestos
 Sch [] Product Liability (NOT Asbestos)
 Sch [] Slander/Libel/Defamation

- — — — — DOMESTIC RELATIONS — — — — —
- Use the **Utah District Court Cover Sheet for Domestic Relations Cases for the following:**
 Protective Orders, Marriage Adjudication, Divorce/Annulment, Custody/Visitation/Support, Counterclaim: Divorce/Separate Maintenance, Counterclaim: Custody/Visit/Support, Counterclaim: Paternity/Grandparent Visitation,

- Fee Case Type
- Domestic Modification, Counter-petition: Domestic Modification, Grandparent Visitation, Paternity/Parentage, Separate Maintenance, Temporary Separation, Uniform Child Custody Jurisdiction & Enforcement Act (UCCJEA), Uniform Interstate Family Support Act (UIFSA), Expungement Petition – Protective Order

- — — — — JUDGMENTS — — — — —
- \$35 [] Foreign Judgment (Abstract of) (E)
 \$375 [] Foreign Country Judgment (E)
 \$50 [] Abstract of Judgment/Order of Utah Court/Agency (E)
 \$30 [] Abstract of Judgment/Order of Utah State Tax Commission (E)
 \$35 [] Judgment by Confession (E)

- — — — — PROBATE — — — — —
- Use the **Utah District Court Cover Sheet for Probate Actions for the following:**
- Adoptions/foreign adoptions; conservatorships; estate personal rep; foreign probate; gestational agreements; guardianships; minor's settlements; name changes; supervised administration cases; trusts; other probate actions

- — — — — SPECIAL MATTERS — — — — —
- \$35 [] Arbitration Award (E)
 \$0 [] Determination Competency-Criminal (E)
 \$150 [] Expungement Petition - Criminal (E)
 \$150 [] Expungement Petition – Eviction (E)
 \$0 [] Expungement Petition - Civil Protective Order/Civil Stalking Injunction (E)
 \$0 [] Hospital Lien (E)
 \$35 [] Judicial Approval of Document: Not Part of Pending Case (E)
 \$35 [] Notice of Deposition in Out-of-State Case/Foreign Subpoena (E)
 \$35 [] Open Sealed Record (E)
 \$50 [] Petition for Adjudication of Priority to Funds on Trustee's Sale

- — — — — MYPAPERWORK (OCAP) — — — — —
- (Utah Code §78A-2-501)
 \$60 [] Documents prepared using MyPaperwork (Online Court Assistance Program)

- — — — — BUSINESS AND CHANCERY COURT — — — — —
- Use the **Utah Business and Chancery Court Cover Sheet** for actions in that court. (Utah Code 78A-5A-101 to 302)

Name

Address

City, State, Zip

Phone

Email

Check your email. You will receive information and documents at this email address.

In the [] District [] Justice Court of Utah

_____ Judicial District _____ County

Court Address _____

In Re:

Petitioner

**Acceptance of Service –
Expungement (Prosecutor)**

Case Number

Judge

The undersigned acknowledges receipt of a copy of the Petition for Expungement.

Date _____ Sign here ►

Prosecutor (print name)

Address

City, State, Zip

Phone

Prosecutor's Name

Prosecutor's Address

City, State, Zip

Phone

Email

Check your email. You will receive information and documents at this email address.

In the [] District [] Justice Court of Utah

_____ Judicial District _____ County

Court Address _____

In Re:

Petitioner

**Consent and Waiver of Hearing –
Expungement
(Prosecutor)**

Case Number

Judge

The undersigned has reviewed Petitioner's Petition to Expunge Records and the case file.

[] The undersigned waives the right to object to Petitioner's Petition to Expunge Records.

[] The undersigned consents to this court entering an order for expungement.

[] The case was dismissed without prejudice or without condition, but the prosecution has not filed and does not intend to refile related charges.

[] There:

[] is a victim in this case.

[] is not a victim in this case.

[] The victim has been notified of the Petition to Expunge Records.

[] The victim has been notified and has authorized the undersigned to waive the victim's right to object to the Petition and to consent to this court entering an order for expungement without further notice.

Date _____ Sign here ► _____
Prosecutor (print name) _____
Address _____
City, State, Zip _____
Phone _____